

Dharam Singh v. State of U.P.

Allahabad High Court · Division Bench · 21 May 2018 · Writ-C No. 17563 of 2018 · **Writ disposed; objection to EE; recovery to abide EE's order**

HEADNOTE

Challenge to a 27 April 2018 recovery citation for alleged theft dues after provisional assessment, on the plea that Clause 6.8 notice and assessment procedure were not followed. The Court did not decide compliance. It directed the consumer to file an objection before the Executive Engineer within ten days and the EE to pass an appropriate order within three weeks; recovery proceedings to abide that order. Writ disposed of.

FACTUAL SUMMARY

Dharam Singh challenged a citation of recovery dated 27 April 2018 by which electricity dues on account of alleged theft, after a provisional assessment, were sought to be recovered. He pleaded that he was never put to notice and that neither provisional nor final assessment had been carried out under Clause 6.8 of the U.P. Electricity Supply Code 2005. Counsel for the electricity department submitted that notices had been dispatched. After an adjournment for instructions, the Division Bench heard the writ on 21 May 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

theft-recovery-citation-remand-to-ee

HOLDING

Where a recovery citation for alleged theft dues after provisional assessment was challenged as issued without notice or Clause 6.8 assessment procedure, the Court did not examine whether the Code had been followed. It directed the petitioner to file his objection before the Executive Engineer (respondent no. 3) within ten days, the EE to examine the claim and pass an appropriate order within three weeks thereafter, and the recovery proceedings to abide that order, and disposed of the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.8 NOTICE AND PROVISIONAL OR FINAL ASSESSMENT PROCEDURE WERE FOLLOWED

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NOT DECIDED — WHETHER ASSESSMENT NOTICES WERE ACTUALLY SERVED ON THE CONSUMER

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NOT DECIDED — VALIDITY OF THE 27 APRIL 2018 RECOVERY CITATION ON THE MERITS

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